concluded that Delhi's statements and actions too were marked by contradictions and inconsistencies. For instance, in 1950, in Parliament, Nehru noted that the western sector all the way to Nepal was delineated by 'usage and custom'.[21] Yet, in March 1959 and September 1959, Nehru instead emphasized the 1842 treaty between Tibet and Ladakh (which also had the assent of the 'Emperor of China'). According to the treaty, the two sides agreed not to tamper with Ladakh's boundaries going back to ancient times. Implicitly, here Nehru was invoking international law under which treaties once signed are subject to *pacta sunt servanda* – 'agreements must be kept' – rather than merely relying on usage and custom to argue for the status quo. India's actions on maps also may have confused and annoyed China. British era maps and indeed Indian maps up to 1952 had shown Aksai Chin as being part of an area that was 'undefined'. Yet, in its new 1954 maps, India had clearly defined its territory which included all of Aksai Chin.[22] Reinforcing the message of the new maps, in October 1954 Nehru told Zhou, 'our frontiers are clear' and are 'not a matter for argument'.[23]

Four years later, on 4 September 1958, Nehru was still adamant. Speaking in Parliament, he said about the border, '[it] is not a matter of dispute as far as we are concerned. It is a fixed thing. There is nothing to talk about . . . [the border] stands defined and does not require further and formal definition'.[24] In contrast, in March 1959, in a reply to Zhou, Nehru admitted that the border was not demarcated everywhere. Then, in August 1959, Nehru's statements in Parliament suggested that India was no longer certain of its claims in the western sector. He noted that the Aksai Chin road, according to India's map, was in Indian territory but admitted that the actual line was not 'marked' – by which he presumably meant properly delineated on maps and on the ground. The western sector was therefore open to discussion, at least parts of it that were 'so very remote and uninhabited'. In any case, the conflict in the west was 'minor', China had strategic reasons for building the road, and India was prepared to enter into discussions.[25]